

26STCV12924 26STCV12924

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-09-23

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Case Number: 26STCV12924 Hearing Date: September 23, 2026 Dept: 512

HEARING DATE: Weds., September 23, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Kabba v. Towwerks, LLC COMPL.

FILED: 04-22-26

CASE NUMBER: 26STCV12924 FAC FILED: 06-09-26

NOTICE: NO

PROCEEDINGS: MOTION

FOR SANCTIONS

MOVING PARTY: Plaintiff

Abdul R. Kabba

RESP. PARTY: Defendant Towwerks LLC

MOTION FOR SANCTIONS

(CCP § 128.7)

TENTATIVE RULING:

Plaintiff Abdul R. Kabba's Motion for

Evidentiary and Monetary Sanctions Based on Fraud on the Court is DENIED.

Plaintiff is ordered to pay \$600 in

sanctions to defense counsel within 30 days of this Court's order.

Moving party is ordered to
give notice.

SERVICE:

☐ Proof of Service Timely Filed (CRC,
rule 3.1300) NO

☐ Correct Address (CCP §§ 1013, 1013a) NO

☐ 16/21 Court Days Lapsed (CCP §§ 12c,
1005(b)) NO

OPPOSITION: Filed
on September 9, 2026 ☐ Late ☐ None

REPLY: Filed
on September 14, 2026 ☐
Late ☐ None

ANALYSIS:

I.

Background

On April 22, 2026, Plaintiff Abdul R
Kabba ("Plaintiff"), proceeding pro per, filed the instant action against
Defendant Towwerks LLC ("Defendant") and Does 1-50.

On June 9, 2026, Plaintiff filed a
First Amended Complaint ("FAC") against Defendant, alleging causes of action
for Negligence, Breach of Bailee Duty, Fraud and Intentional Misrepresentation,
Common Law Duress and Extortion, Violation of California Vehicle Code section
22851.3, Unfair Business Practices, Conversion, Violation of California Penal
Code section 115, Intentional Infliction of Emotional Distress ("IIED"),
Negligence Per Se, and Civil Action for Treble Damages. The underlying action
arises from Defendant's towing of Plaintiff's motorhome. (See FAC.)

On July 14, 2026, Plaintiff filed the instant

Motion for Evidentiary and Monetary Sanctions Based on Fraud on the Court (the “Motion”) and request for judicial notice (“RJN”).

On September 9, 2026, Defendant filed an Opposition and Evidentiary Objections to the Kabba declaration filed in support of the Motion.

On September 14, 2026, Plaintiff filed a Reply.

On September 15, 2026, the Court sustained in part and overruled in part Defendant’s Demurrer to the FAC and denied Defendant’s Motion to Strike Plaintiff’s FAC. (9/15/26 Order.) The Court, in part, granted Plaintiff’s 30 days’ leave to amend. (9/15/26 Order.)

II.

Procedural
Issues

As an initial matter, the Court finds there is no proof of service filed demonstrating the Motion and notice of hearing were served in any manner on Defendant.

However, given the timely Opposition filed on the merits and inclusive of the correct hearing date, time, and location, the Court exercises its discretion to address the Motion on the merits.

III.

Request
for Judicial Notice

In support of the Motion, Plaintiff requests the Court take judicial notice of various documents. However, no documents are attached to the RJN. The Court’s docket reflects that an “Exhibit 11” and “Exhibit 12” have been submitted with the Court that could be the Exhibits 11-12 listed in the RJN; however, Exhibits 11 and 12 are heavily annotated by Plaintiff. Moreover, the Court’s records do not reflect that the “Exhibit 12” allegedly filed in conjunction with Defendant’s 6/30/26 demurrer in this action was actually filed in conjunction with the demurrer.

For all these reasons, the Court
DENIES the requests.

IV.

Evidentiary
Objections

In conjunction with the Opposition, Defendant
raises various objections to the Kabba declaration filed in support of the
Motion. The Court OVERRULES the objections.

V.

Legal
Standard

Code of Civil

Procedure section 128.7 states that every pleading or motion presented to the
Court is certifying that to the best of the person's knowledge, information,
and belief, all of the following conditions are met: "(1) It is not being
presented primarily for an improper purpose...(2) The ... contentions therein
are warranted by existing law or by a nonfrivolous argument for the extension,
modification, or reversal of existing law or the establishment of new law...
(3) The allegations and other factual contentions have evidentiary support
or... are likely to have evidentiary support ... (4) The denials of factual
contentions are warranted on the evidence or, if specifically so identified,
are reasonably based on a lack of information or belief." (Code Civ. Proc., § 128.7, subd. (b).)

In addition, section 128.7 contains a
"safe harbor" provision specifying the motion for sanctions may not be filed
"unless, within 21 days after service of the motion, ... the challenged paper,
claim, defense, contention, allegation, or denial is not withdrawn or
appropriately corrected." (Code Civ. Proc., § 128.7, subd.
(c)(1).)

VI.

Discussion

Plaintiff moves

the Court to sanction Defendant due to Defendant filing a false document in
support of its request for judicial notice filed in support of its 6/30/26 Demurrer.

(Motion, Kabba Decl.)

As an initial matter, the Court finds

Plaintiff has failed to demonstrate compliance with the 21-day safe harbor provision of section 128.7 as required given that the challenged material was allegedly filed in support of a demurrer that could have been withdrawn or corrected.

(See Code Civ. Proc., § 128.7, subd. (c)(1).)

Moreover, the Court finds the

Motion is meritless as the Court's records do not reflect that the document serving as the basis for the Motion was filed in conjunction with Defendant's request for judicial notice filed in conjunction with Defendant's 6/30/26 demurrer.

(See Motion, Exh. 12; 9/15/26 Order, 6/30/26 Demurrer, RJN; Code Civ. Proc., § 128.7.)

Thus, the Motion is DENIED.

To the extent Defendant requests \$4,550.00

in sanctions for Plaintiff's filing of the instant Motion (see Notice of Opp.; Opp., Heller Decl.), the Court finds this request is excessive given the nature of the Motion and its procedural defects. However, since Defendant is the prevailing party on the Motion, the Court grants Defendant's request for sanctions for opposing the unsuccessful Motion in the reduced total amount of \$600, pursuant to Code of Civil Procedure section 128.7. (See Code Civ. Proc., § 128.7, subd. (c)(1).)

VII.

Conclusion
& Order

For the foregoing reasons, Plaintiff

Abdul R. Kabba's Motion for Evidentiary and Monetary Sanctions Based on Fraud on the Court is DENIED.

Plaintiff is ordered to pay \$600 in

sanctions to defense counsel within 30 days of this Court's order.

Moving party is ordered to
give notice.